

GALLANT IAS ACADEMY
PRELIMS CUM MAINS BATCH 2027
POLITY
MODULE 2.2
PARLIAMENT: ARTICLES 89- 101

Parliament: Presiding Officers and Procedure

Article 89: Chairman and Deputy Chairman of the Council of States

The **Vice-President of India** is the **ex-officio Chairman** of the Council of States (Rajya Sabha). He is not a member of the Rajya Sabha, and only exercises a **casting vote** in the event of an equality of votes. The **Deputy Chairman**, by contrast, is elected from amongst the members of the Rajya Sabha itself.

Article 90: Vacation, Resignation and Removal of the Deputy Chairman

The Deputy Chairman vacates office if he ceases to be a member of the Council. He may resign at any time by writing to the **Chairman**. He may be removed by a resolution passed by an **effective majority** (a majority of all the then members of the Council), and no such resolution may be moved unless at least 14 days' notice has been given of the intention to move it.

Article 91: Power of the Deputy Chairman or Other Person to Perform the Duties of Chairman

If the office of Chairman is **vacant** (i.e. no Vice-President in office), the Deputy Chairman carries out the duties of Chairman; if the Deputy Chairman's office is also vacant, the **President** may appoint a member for the purpose. If the Chairman is merely **absent** from a sitting, the Deputy Chairman presides; if the Deputy Chairman is also absent, a member presides as per the rules of the House - drawn from a **Panel of Vice-Chairpersons**.

Article 92: Chairman or Deputy Chairman Not to Preside While a Resolution for His Removal Is Under Consideration

Whichever officer - the Chairman or the Deputy Chairman - is the subject of a removal resolution shall not preside over the House while that resolution is under consideration, though he remains present. He retains the right to **speak and take part** in the proceedings, and may **vote** on the resolution or any other matter, but only in the first instance - he is not entitled to a casting vote in the event of a tie.

Article 93: Speaker and Deputy Speaker

Both the **Speaker** and the **Deputy Speaker** of the Lok Sabha are elected from amongst its members, as soon as may be after a general election. The date for the Speaker's election is fixed by the President under the rules, while the date for the Deputy Speaker's election is fixed by the **Speaker** himself.

The Deputy Speaker is not subordinate to the Speaker, and the Speaker outranks Cabinet Ministers in the constitutional order of precedence. Whenever the Deputy Speaker is appointed to a parliamentary committee, he automatically heads it. Since the **11th Lok Sabha**, a convention has developed of the Speaker coming from the ruling

party (or alliance) and the Deputy Speaker from the principal Opposition party - up to the 10th Lok Sabha, both posts were typically held by the ruling party.

The institutions of Speaker and Deputy Speaker (originally called President and Deputy President) trace their **genesis** to the **Government of India Act, 1919**. The first President and Deputy President of the Central Legislative Assembly, appointed in 1921, were **Frederick Whyte** and **Sachidanand Sinha** respectively. The first Indian and first elected Speaker was **Vithalbhai J. Patel**, in 1925. The first Speaker and Deputy Speaker of independent India were **G.V. Mavalankar** and **Ananthasayanam Ayyangar**.

Article 94: Vacation, Resignation and Removal of the Speaker and Deputy Speaker

Either officer vacates office if he ceases to be a member of the House. On resignation, the **Speaker** addresses his letter to the **Deputy Speaker**, and the **Deputy Speaker** addresses his to the **Speaker**. Removal requires an effective majority (a majority of all the then members of the House), with at least 14 days' notice given before the resolution is moved. Importantly, the Speaker does not vacate office merely because the House is dissolved - he continues until immediately before the first meeting of the new House of the People after the dissolution.

Article 95: Power of the Deputy Speaker or Other Person to Perform the Duties of Speaker

If the Speaker's office is **vacant**, the Deputy Speaker carries out the Speaker's duties; if the Deputy Speaker's office is also vacant, the **President** may appoint a member for the purpose. If the Speaker is merely **absent** from a sitting, the Deputy Speaker presides; if the Deputy Speaker is also absent, a member from a 10-member Panel of Chairpersons (constituted under the Rules of the House) presides.

Article 96: Speaker or Deputy Speaker Not to Preside While a Resolution for His Removal Is Under Consideration

As with the Chairman under Article 92, the Speaker or Deputy Speaker facing a removal resolution shall not preside while it is under consideration, but retains the right to **speak and vote as a member** - though again only in the first instance, with no casting vote in case of a tie.

Comparison: Rajya Sabha vs Lok Sabha Presiding Officers (Articles 89-96)

Aspect	Rajya Sabha (Chairman / Deputy Chairman)	Lok Sabha (Speaker / Deputy Speaker)
How the top office is filled	Chairman is the Vice-President, ex-officio - not a member of the House	Speaker is elected from amongst Lok Sabha members
How the deputy office is filled	Deputy Chairman elected from amongst Rajya Sabha members	Deputy Speaker elected from amongst Lok Sabha members

Vacation of office	If ceases to be a member of the Council (applies to Deputy Chairman only, since Chairman is not a member)	If ceases to be a member of the House
Resignation addressed to	Deputy Chairman resigns to the Chairman	Speaker resigns to Deputy Speaker; Deputy Speaker resigns to Speaker
Removal	Effective majority; 14 days' notice required (Article 90)	Effective majority; 14 days' notice required (Article 94)
Special continuity rule	No equivalent provision	Speaker does not vacate office until immediately before the first meeting of the new House after dissolution
Power to act when office vacant	Deputy Chairman acts; if also vacant, President appoints a member (Article 91)	Deputy Speaker acts; if also vacant, President appoints a member (Article 95)
Power to act when merely absent	Deputy Chairman presides; if also absent, Panel of Vice-Chairpersons (Article 91)	Deputy Speaker presides; if also absent, 10-member Panel of Chairpersons (Article 95)

Article 97: Salaries and Allowances of the Chairman, Deputy Chairman, Speaker and Deputy Speaker

Salaries are fixed by Parliament, and are **charged expenditure** on the Consolidated Fund of India - not subject to annual vote. The Constitution is silent on **pension** for these offices.

Speaker: Independence

The Speaker's independence rests on several safeguards: a **difficult removal procedure** (effective majority plus 14-day notice); salaries **charged** upon the Consolidated Fund of India; a **limitation on discussing** the Speaker's conduct in the House except in exceptional circumstances; **immunity from judicial review** for decisions regulating procedure or conducting business; no obligation to vote in the first instance; and a high **order of precedence** - 7th, alongside the Chief Justice of India.

Speaker: Analysis

Role	Issues	Way Ahead
Conducts sessions and ensures the rules of the House are followed; interpreter of the Constitution within the House	Allegations of bias - e.g. the large-scale suspension of MPs in 2023	A Code of Conduct for the Speaker
Presides over Money Bill certification and joint sittings	Lack of security of tenure	Greater security of tenure, with removal only by special majority
Decides anti-defection (ADL) questions under the Tenth Schedule, with a casting vote	Perceived bias in ADL decisions	Shifting ADL decisions to the Election Commission
Constitutes Parliamentary Committees and allows referral of bills	Constitution does not prescribe qualifications for the Speaker	A greater role for parliamentary committees
Permits adoption of motions, other than a no-confidence motion (which needs no such permission)	'Once a Speaker, always a Speaker' is a UK convention not followed in India	Examples such as Neelam Sanjiva Reddy (who resigned his party on becoming Speaker) and the VS Page Committee recommendations are cited as models

Pranab Mukherjee described the Speaker's role as not merely running the House but acting as a bridge between government and opposition while safeguarding the democratic process. G.V. Mavalankar held that the Speaker should belong to all members or none, and should rise above party and politics.

Mains Practice Question: Analyze the challenges to the impartiality of the Speaker's office in India and suggest measures to enhance its independence. (10 marks) (150 words)

Miscellaneous

The Speaker is the **Principal Spokesperson** of the House, and derives powers and duties from the Constitution, the Rules of Procedure, and the Conduct of Business of the Lok Sabha. He is the final interpreter of the Constitution, the Rules of Procedure, and parliamentary precedent within the House; he can permit **secret sittings**; and he is the ex-officio Chairman of the **Indian Parliamentary Group**.

The office of **Speaker Pro Tem** is not mentioned in the Constitution or the Rules, but is described in the Handbook of Parliamentary Functioning. When the previous Speaker vacates office just before the first meeting of a newly elected Lok Sabha, the **President** appoints a Speaker Pro Tem, who takes oath before the President. By convention, the senior-most member becomes Speaker Pro Tem. He holds all the powers of the Speaker for the purpose of presiding over the first sitting, administers the oath to other members, and conducts the election of the new Speaker.

Article 98: Secretariat of Parliament

Each House of Parliament has its own **separate secretarial staff**, which serves as the custodian of procedure, precedent and legislative knowledge for that House.

Important Offices in Parliament

Leader of the House

Under the Rules of the Lok Sabha, the Leader of the House is the **Prime Minister**, if he is a member of the Lok Sabha, or otherwise a minister nominated by the Prime Minister.

Leader of the Opposition

The Leader of the Opposition (LoP) is the leader of the party holding at least one-tenth of the total strength of the House. The post was first recognised in 1969, and acquired **statutory recognition** through the **Salary and Allowances of Leaders of Opposition in Parliament Act, 1977**.

The LoP is a statutory **member of the selection committees** that appoint the **CBI Director**, the **Central Vigilance Commissioner (CVC)**, the **Chief Information Commissioner (CIC)**, the **Chairperson of the NHRC**, and the **Lokpal** Chairperson and members. The LoP is also seen as the voice of the Opposition, informally likened to a **Shadow Cabinet**, and as embodying a doctrine of checks and balances.

Challenges facing the office include limited resources, only a virtual veto within appointment committees (since the LoP can be outvoted), the fact that mandatory appointment of an LoP is not itself constitutionally guaranteed, the non-codified nature of the LoP's work (following the British model of open communication between the PM and the LoP), and the difficulty of representing a diverse and fragmented Opposition. As the saying goes, the very essence of democracy is dissent and debate.

Whip

The office of Whip is mentioned neither in the Constitution nor in the Rules or any parliamentary statute - it rests purely on convention, and the Whip is appointed by the political party itself.

Article 99: Oath or Affirmation by Members

Members take an oath or affirmation before the President, or a person appointed by him for this purpose. The form of the oath is prescribed in the **Third Schedule** of the Constitution.

Article 100: Voting in the Houses and Quorum

Unless the Constitution provides otherwise, matters are decided by a **majority of members present and voting**. The Chairman and Speaker do not vote in the first instance - they exercise only a **casting vote** in case of a tie. The **quorum** for either House is one-tenth of its total membership; if quorum is lacking, the Chairman or

Speaker must suspend proceedings until it is met.

Article 101: Vacation of Seats

Article 101, read with the **Representation of the People Act, 1951**, sets out several scenarios in which a member's seat falls vacant:

Scenario	Rule
Elected to both Houses of Parliament	Must intimate within 10 days which House he intends to serve; if he fails to do so, the Rajya Sabha seat becomes vacant by default
Sitting member of one House elected to the other House	Membership of the first House becomes vacant automatically
Elected to two seats within the same House	Must notify his choice within 14 days; failing this, both seats become vacant
Already a member of a State Legislature, then becomes a member of Parliament	Parliamentary seat becomes vacant unless he resigns from the State Legislature within 14 days
Resignation	Addressed to the Speaker or Chairman as applicable; may be declined if the presiding officer believes it is not voluntary or genuine
Absence from the House	Seat becomes vacant if absent for more than 60 days without permission; periods when the House is adjourned for more than 4 consecutive days, or prorogued, are excluded from this count
Other cases	Seat falls vacant on election as President or Vice-President, or on appointment as Governor

Prelims Practice Questions (PYQs)

1. Consider the following statements:
 1. In the election for Lok Sabha or State Assembly, the winning candidate must get at least 50 percent of the votes polled, to be declared elected.
 2. According to the provisions laid down in the Constitution of India, in Lok Sabha, the Speaker's post goes to the majority party and the Deputy Speaker's to the Opposition.

Which of the statements given above is/are correct?

 - (1) 1 only
 - (2) 2 only
 - (3) Both 1 and 2
 - (4) Neither 1 nor 2
2. Consider the following statements:
 1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
 2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.

Which of the statements given above is/are correct?

 - (a) 1 only
 - (b) 2 only
 - (c) Both 1 and 2
 - (d) Neither 1 nor 2
3. With reference to the Deputy Speaker of Lok Sabha, consider the following statements:
 1. As per the Rules of Procedure and Conduct of Business in Lok Sabha, the election of Deputy Speaker shall be held on such date as the Speaker may fix.
 2. There is a mandatory provision that the election of a candidate as Deputy Speaker of Lok Sabha shall be from either the principal opposition party or the ruling party.
 3. The Deputy Speaker has the same power as of the Speaker when presiding over the sitting of the House and no appeal lies against his rulings.
 4. The well established parliamentary practice regarding the appointment of Deputy Speaker is that the motion is moved by the Speaker and duly seconded by the Prime Minister.

Which of the statements given above are correct?

 - (a) 1 and 3 only
 - (b) 1, 2 and 3
 - (c) 3 and 4 only
 - (d) 2 and 4 only
4. With reference to the Speaker of the Lok Sabha, consider the following statements:

While any resolution for the removal of the Speaker of the Lok Sabha is under consideration

 1. He/She shall not preside.
 2. He/She shall not have the right to speak.
 3. He/She shall not be entitled to vote on the resolution in the first instance.

Which of the statements given above is/are correct?

 - (a) 1 only
 - (b) 1 and 2 only
 - (c) 2 and 3 only
 - (d) 1, 2 and 3

5. Consider the following statements:

I. On the dissolution of the House of the People, the Speaker shall not vacate his/her office until immediately before the first meeting of the House of the People after the dissolution.

II. According to the provisions of the Constitution of India, a Member of the House of the People on being elected as Speaker shall resign from his/her political party immediately.

III. The Speaker of the House of the People may be removed from his/her office by a resolution of the House of the People passed by a majority of all the then Members of the House, provided that no resolution shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution.

Which of the statements given above are correct?

[A] I and II only

[B] II and III only

[C] I and III only

[D] I, II and III

6. Regarding the office of the Lok Sabha Speaker, consider the following statements:

1. He/She holds the office during the pleasure of the President.

2. He/She need not be a member of the House at the time of his/her election.

3. If he/she intends to resign, the letter of his/her resignation has to be addressed to the Deputy Speaker.

Which of the statements given above is/are correct?

(1) 1 and 2 only

(2) 3 only

(3) 1, 2 and 3

(4) None

7. Consider the following statements:

1. In the first Lok Sabha, the single largest party in the opposition was the Swatantra Party.

2. In the Lok Sabha, a 'Leader of the Opposition' was recognised for the first time in 1969.

3. In the Lok Sabha, if a party does not have a minimum of 75 members, its leader cannot be recognised as the Leader of the Opposition.

Which of the statements given above is/are correct?

(a) 1 and 3 only

(b) 2 only

(c) 2 and 3 only

(d) 1, 2 and 3

8. Consider the following statements:

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.

2. In the 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.

3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

(1) 1 only

(2) 2 only

(3) 1 and 3

(4) 2 and 3